

ORDINANCE NO. 591

AN ORDINANCE AMENDING ORDINANCE 359 OF THE ZONING REGULATIONS OF THE CITY OF RECTOR, ARKANSAS, TO REVISE THE COMPOSITION OF THE BOARD OF ZONING ADJUSTMENT AND TO ESTABLISH UPDATED CRITERIA FOR GRANTING VARIANCES, AND FOR OTHER PURPOSES

WHEREAS, the Planning Commission of the City of Rector has recommended updates to the organization of the Board of Zoning Adjustment and the criteria used in reviewing variance requests; and

WHEREAS, the City Council finds that such amendments promote transparency, consistency, and sound land use planning in accordance with the intent of the zoning ordinance and the General Plan of the City of Rector; and

WHEREAS, a public hearing was posted and was held with the Planning Commission to allow public input, and

WHEREAS, the Planning Commission has made recommendations to the City Council for modification of the existing ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF RECTOR, ARKANSAS:

Section 1. The City Council of the City of Rector Arkansas shall amend the following of Ordinance 359, Article 8-1 – Organization of the Board of Zoning Adjustment

Article 8-1 shall be amended to read as follows:

- A. A Board of Zoning Adjustment is hereby established to consist of five members to be nominated by the Planning Commission and confirmed by the City Council. One (1) member of the first Board shall be appointed for one (1) year, one for two (2) years, one for three (3) years, one for four (4) years, and one for five (5) years. Thereafter all members shall be appointed for terms of five (5) years each. At least one member of the Board of Zoning Adjustment shall also be a member of the Planning Commission.
- B. Upon appointment and annually thereafter the Board shall meet, organize, and elect its own chair, vice-chair, and secretary who shall each serve for one year or until the successor duly qualifies.

Section 2. The City Council of the City of Rector Arkansas shall amend the following of Ordinance 359, Article 8-2 – Meetings

Article 8-2 (B) shall be amended to read as follows:

- B. The presence of three (3) members shall be necessary to constitute a quorum and a majority vote of the members of the Board shall be necessary to reverse any order, requirement, decision or determination of an administrative officer, or to decide in favor of the applicant

on any matter upon which it is required to pass under the zoning ordinance, or to authorize a variance from such regulation.

Section 3. The City Council of the City of Rector Arkansas shall amend the following of Ordinance 359, Article 8-4 – Variance

Article 8-4 (A) shall be amended to read as follows:

A. To authorize upon appeal in specific cases such variance from the terms of this ordinance as will not be contrary to the public interest where, owing to special conditions, a literal enforcement of the provisions of this ordinance would result in unnecessary hardship. A variance from the terms of this ordinance may be granted by the Board of Zoning Adjustment in the following instances only:

1. A written application for a variance is submitted demonstrating:
 - a. The property subject to the variance possesses unique conditions not generally applicable to other properties in the same district, or is subject to physical, topographical, or geologic limitations that restrict its use.
 - b. The grant of the variance will not grant any special privilege to the property owner or the owner's authorized agent.
 - c. The applicant can demonstrate that without a variance there can be no reasonable use of the property.
 - d. The grant of the variance is not based solely on economic reasons.
 - e. The necessity for the variance was not created by the property owner or the owner's authorized agent.
 - f. The grant of the variance will not be injurious to the public health, safety, or welfare.

Section 4. The City Council of the City of Rector Arkansas shall amend the following of Ordinance 359, Article 8-5 – Appeals from Decisions of the Board

Article 8-5 (A) shall be amended to read as follows:

A. Appeal from the decision of the board of adjustment shall be the city council within 30 days from the decision of the board.

Section 5. Severability

That the provisions of this Ordinance are separable and if a section, phrase or provision shall be declared invalid, such declaration shall not affect the validity of the remainder of the Ordinance.

Section 6.

That all ordinances and resolutions and parts thereof in conflict herewith are hereby repealed to the extent of such conflict.

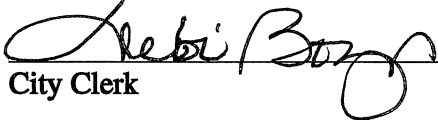
Emergency Clause

It is hereby declared that an emergency exists to preserve the public peace, health, and safety of the citizens of Rector, Arkansas, by ensuring consistent and enforceable housing regulations. Therefore, this ordinance shall be in full force and effect upon its passage and publication.

PASSED AND APPROVED this 9th day of OCTOBER, 2025.

By: 
Mayor Shawn Brandon

Attested:


City Clerk